

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariana Thomas	Team: Squad #16	CCRB Case #: 202304448	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 05/10/2023 1:48 AM	Location of Incident: Sutter Avenue and New Jersey Avenue	18 Mo. SOL 11/10/2024	Precinct: 75		
Date/Time CV Reported Wed, 05/10/2023 2:06 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/19/2023 4:13 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Nicholas Guele	24876	950540	SRG 3
2. PO Frederick Alleyne	00312	948609	SRG 3

Officer(s)	Allegation	Investigator Recommendation
A . PO Frederick Alleyne	Abuse: Police Officer Frederick Alleyne stopped the vehicle in which § 87(2)(b) was an occupant.	A . Within NYPD Guidelines
B . PO Nicholas Guele	Abuse: Police Officer Nicholas Guele stopped the vehicle in which § 87(2)(b) was an occupant.	B . Within NYPD Guidelines
C . PO Frederick Alleyne	Abuse: Police Officer Frederick Alleyne threatened to arrest § 87(2)(b)	C . Substantiated
D . PO Frederick Alleyne	Abuse: Police Officer Frederick Alleyne issued an unlawful summons to § 87(2)(b)	D . Substantiated
E . PO Nicholas Guele	Abuse: Police Officer Nicholas Guele issued an unlawful summons to § 87(2)(b)	E . Substantiated

Case Summary

On May 10, 2023, § 87(2)(b) called IAB and filed this complaint, which was received by the CCRB on May 19, 2023, under IAB Log § 87(2)(b).

On May 10, 2023, at 1:48 a.m., Police Officer Frederick Alleyne and Police Officer Nicholas Guele, both of the Strategic Response Group 3, stopped § 87(2)(b) vehicle (**Allegations A-B: Abuse of Authority, Within NYPD Guidelines**). PO Alleyne threatened to arrest § 87(2)(b) (**Allegation C: Abuse of Authority, Substantiated**). PO Alleyne and PO Guele issued § 87(2)(b) an unlawful summons (**Allegations D-E: Abuse of Authority, Substantiated**).

§ 87(2)(b) was issued a criminal summons for disorderly conduct (**Board Review 01, page 12**).

This case was originally assigned to former Investigator Ari Spett and was reassigned to Investigator Ariana Thomas.

The investigation received two body-worn camera (“BWC”) videos from the NYPD Legal Bureau (**Board Review 02-03**) and cell-phone video from § 87(2)(b) (**Board Review 04**), which is consistent with the BWC video. The investigation is not in possession of any additional video evidence.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Frederick Alleyne stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer Nicholas Guele stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) a Door Dash employee, testified that on May 10, 2023, at 1:48 a.m., she was making a delivery driving her black BMW iX-3 SUV, which she purchased from Greenwich BMW in Greenwich, Connecticut a month prior (**Board Review 05**). Her cousin, § 87(2)(b) was seated in the front passenger’s seat with her seatbelt on. The dealer registered the car in the State of New York, but § 87(2)(b) had a temporary paper Connecticut license plate, which expired on May 12, 2023, taped to the rear window of her vehicle as she awaited her New York State license plates. As § 87(2)(b) was driving along Sutter Avenue, she noticed a marked police car behind her, flashing a light from the driver’s side. § 87(2)(b) continued to drive along Sutter Avenue. The police car continued to follow her for approximately three to five blocks before activating its turret lights and sirens. Over the police car’s PA system, an officer ordered § 87(2)(b) to “turn [her] car off.” § 87(2)(b) immediately stopped, turned off the engine, rolled down her window, placed her hands on the steering wheel, and began recording the incident. PO Alleyne approached § 87(2)(b) driver’s side door and ordered § 87(2)(b) to produce her driver’s license. § 87(2)(b) asked PO Alleyne why he stopped her. PO Alleyne told § 87(2)(b) that he stopped her because her tag was improperly displayed. § 87(2)(b) told PO Alleyne that she doubted that her car dealer, who affixed the temporary plate in the window, would have been in error about such matters.

§ 87(2)(b) was unavailable to provide a statement during the investigation (See IAs for contact attempts).

In BWC for PO Alleyne (**Board Review 02**), at 01:00, PO Alleyne approaches § 87(2)(b) vehicle from behind and shines his flashlight towards the rear window of the vehicle, where a temporary license plate is affixed to the upper right corner, behind the glass. At 01:10, PO Alleyne asks § 87(2)(b) how she is doing. She says she is fine and asks why she is being stopped. PO Alleyne says, “Because your plate is improperly displayed.” § 87(2)(b) tells PO Alleyne the

dealer put it in. PO Alleyne tells her the plate needs to be, “in the license plate area.”

PO Alleyne’s statement was generally consistent with the BWC video (**Board Review 06**). He testified that he and PO Guele were on patrol addressing conditions within the 75th precinct, such as infractions, violations, or crimes in progress. It was a dark night, and as they rode along Sutter Avenue, they observed a black BMW SUV, identified via the investigation as § 87(2)(b) vehicle, that appeared to not have a license plate. The officers were driving directly behind § 87(2)(b) vehicle. PO Alleyne did not remember any conversation prior to the stop nor who first observed the vehicle. The back window was tinted, and PO Alleyne could not see the temporary Connecticut license plate in the window until he shined his flashlight towards it as he approached § 87(2)(b) vehicle. PO Alleyne told § 87(2)(b) that the basis for stopping her vehicle was that he could not see her license plate, as it was improperly displayed. § 87(2)(b) temporary license plate should have been displayed in the “license plate area” over her BMW. Any improper display of the temporary license plate is a violation of New York Vehicle and Traffic Law.

PO Guele’s statement was consistent with the BWC video and PO Alleyne’s statement (**Board Review 07**).

New York Vehicle and Traffic Law §402 (1)(b), requires that license plates must be kept clean and in a condition so as to be easily readable and shall not be covered by glass or any plastic material (**Board Review 08**).

It is undisputed that § 87(2)(b) license plate was covered by tinted glass behind her rear window. § 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

Allegation (C) Abuse of Authority: Police Officer Frederick Alleyne threatened to arrest § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Frederick Alleyne issued an unlawful summons to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Nicholas Guele issued an unlawful summons to § 87(2)(b)

§ 87(2)(b) testified that she refused to give PO Alleyne her driver’s license, stating that she did not commit a crime. PO Alleyne again ordered her to produce her license. § 87(2)(b) informed PO Alleyne that she was going to have § 87(2)(b) open the glove compartment to get it. § 87(2)(b) handed PO Alleyne her driver’s license, registration, and proof of insurance. The officers returned to their police car. After some time, PO Alleyne returned § 87(2)(b) documents and handed her a criminal summons for disorderly conduct. § 87(2)(b) asked PO Alleyne if her temporary tag was valid, to which PO Alleyne replied, “I don’t know.”

In BWC for PO Alleyne (**Board Review 02**), at 01:28, PO Alleyne orders § 87(2)(b) to produce her ID. § 87(2)(b) says she would like to understand the legitimacy of the stop. PO Alleyne says the license plate is behind tinted glass, so he could not see it. § 87(2)(b) says PO Alleyne shined a light inside her car. At 01:50, PO Alleyne orders § 87(2)(b) to produce her ID. § 87(2)(b) says she has not committed a crime since the dealer affixed the plate, so she does not need to produce ID. § 87(2)(b) says this is “harassment” and that PO Alleyne has no grounds to stop her. At 02:18, PO Alleyne tells § 87(2)(b) “Listen, if you don’t give me your license, you will get arrested.” § 87(2)(b) reiterates that she has not committed a crime and is afraid to reach for her license because the stop is “targeted, unwarranted, and illegal.” At 02:56, PO Alleyne reiterates that § 87(2)(b) license plate is improperly displayed and behind tinted glass. Between 03:12 and

03:35, PO Alleyne continues to ask § 87(2)(b) for her ID. § 87(2)(b) asks for PO Alleyne's and PO Guele's names and shield numbers, which they both provide verbally. At 04:30, § 87(2)(b) hands PO Alleyne her license and registration. At 05:03, the officers return to their vehicle. At 05:13, PO Alleyne says, "Why does she have to make this more difficult?" PO Alleyne examines the documents, asking PO Guele, "We gotta give her something. You got any B's?" At 07:29, PO Alleyne says, "You know what she said? Turn off the spotlight." PO Guele says, "Did she?" to which PO Alleyne replies, "She got some balls." At 07:35, PO Guele whispers to PO Alleyne, "Just watch what you say." At 08:41, PO Alleyne whispers to PO Guele, "Let's write her a C. You know, a discon." PO Guele then asks PO Alleyne, "Why not just say 'improperly displayed'?" PO Guele then whispers to PO Alleyne, "I think discon would be a stretch." At 09:10, PO Alleyne says, "Let's do a discon, I'll do a C." PO Guele hands PO Alleyne a C-summons, which PO Alleyne writes. At 09:31, PO Alleyne says, "To put us through that, she's gotta get something." PO Guele responds, "No, we're gonna give her something." At 17:50, both PO Alleyne and PO Guele exit their police car and walk over to § 87(2)(b) vehicle. PO Alleyne hands § 87(2)(b) her documents and tells her she is receiving a summons for disorderly conduct. § 87(2)(b) asks for what and PO Alleyne says she will find out in court.

PO Alleyne's statement was somewhat consistent with the BWC video. He testified that after several minutes of a "back and forth" conversation, § 87(2)(b) who had an argumentative demeanor, gave PO Alleyne her documentation "grudgingly." PO Alleyne told § 87(2)(b) that she could be arrested if she did not produce her driver's license because she was refusing a lawful order, preventing PO Alleyne from doing his job, which is Obstruction of Government Administration ("OGA"), a misdemeanor charge. Besides OGA, § 87(2)(b) could not have been arrested for anything else. When presented with the disorderly conduct summons (**Board Review 01**), PO Alleyne stated that § 87(2)(b) refusal to follow a lawful order to produce her driver's license constituted disorderly conduct. Besides not complying with his lawful order to produce her license, § 87(2)(b) did not do anything else that constituted disorderly conduct. PO Alleyne did not remember if there was any pedestrian or vehicular traffic. When presented with PO Guele's BWC video (**Board Review 03**), which is consistent with PO Alleyne's BWC video, PO Alleyne stated that he told PO Guele, "We gotta give her something," because § 87(2)(b) committed multiple infractions.

PO Guele's statement was generally consistent with PO Alleyne's. He testified that at the point when PO Alleyne told her so, § 87(2)(b) could have been arrested for refusing to provide her ID. If she had persisted in her refusal, the officers would have taken her to the stationhouse for identification purposes. § 87(2)(b) demeanor was non-compliant. There was a passenger in the vehicle, who did not say anything and no one else was in the area at the time of the incident. Sutter Avenue is a busy street, so there was likely traffic, though PO Guele could not independently recall if there was at the time of the stop. The officers issued § 87(2)(b) this summons because she refused a lawful order to produce ID, though she eventually produced it after an "extended period of time." When presented with his own BWC video (**Board Review 03**), PO Guele stated that he did not recall why he told PO Alleyne that "discon" would be a "stretch," nor why disorderly conduct would have been a stretch in this situation. He and PO Alleyne agreed that § 87(2)(b) should receive a summons for disorderly conduct.

The summons for disorderly conduct (240.20 (6)) (**Board Review 01, page 12**), reported by PO Alleyne and approved by PO Guele, notes that § 87(2)(b) failed to comply with officers' lawful orders.

§ 87(2)(g), [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)], § 87(2)(f)

Merely refusing to provide driver's license, registration, and insurance to an officer is not obstructing governmental administration nor an unlawful act. Per New York Vehicle and Traffic Law § 507, it is presumptive evidence that the driver is driving without a license. People v. Alston, 9 Misc. 3d 1046 (**Board Review 19**).

The BWC footage captures PO Alleyne telling § 87(2)(b) that she would be arrested if she failed to produce her driver's license § 87(2)(g)

it is recommended that **Allegation C** be closed as **Substantiated**.

New York State Penal Law, Section 240.20 states that a person is guilty of disorderly conduct when, with the intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, 1) he engages in fighting or in violent, threatening behavior, or 2) he makes unreasonable noise, or, 3) in a public place, he uses abusive or obscene language, or makes an obscene gesture, or 4) without lawful authority, he disturbs any lawful assembly or meeting of persons, or 5) he obstructs vehicular or pedestrian traffic, or 6) he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse, or 7) he creates a hazardous or physically offensive condition by an act which serves no legitimate purpose (**Board Review 12**).

People v. Baker, 20 N.Y.3d 354, states that, "critical to a charge of disorderly conduct is a finding that defendant's disruptive statements and behavior were of a public rather than an individual dimension" (**Board Review 13**). People v. Weaver, 16 N.Y.3d 123, states that, "a person may be guilty of disorderly conduct only when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem" (**Board Review 14**).

Unlawful summons allegations were pled against PO Alleyne and PO Guele, as the BWC footage confirms that they both discussed and agreed to cite § 87(2)(b) for disorderly conduct and both of their names appear on the summons. The criminal summons for disorderly conduct revealed that § 87(2)(b) was cited for subsection 6, congregating with other persons in a public place and refusing to comply with a lawful order to disperse. § 87(2)(g)

Therefore, it is recommended that **Allegations D and E** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)

- § 87(2)(b)
- This is the first complaint to which § 87(2)(b) has been a party (**Board Review 16**).
- PO Alleyne has been a member of service for 13 years and has been a subject in six CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g)
- PO Guele has been a member of service for 12 years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On October 18, 2023, a Notice of Claim inquiry was sent to the New York City Office of the Comptroller (**Board Review 17**). The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator:	<u>Ariana Thomas</u>	<u>Inv. Ariana Thomas</u>	<u>11/8/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>11/09/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date